

1/15

File No: EXP202208230

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 16, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against FOURTH PARTY LOGISTICS, S.L. (hereinafter, the defendant), through the Agreement that is transcribed:

<<

File No: EXP202208230

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on June 29, 2022. The complaint is directed against "Envialia."

The complaint states:

"Today, June 28 at 14:30, the courier called me from phone ***PHONE.1 to deliver a package from Carrefour. Since I was not at home, I indicated that he should leave it with my neighbor on the first left, B.B.B. He said that was perfect. When I arrived home 20 minutes later, my neighbor told me that nothing had been delivered to him. I called the transporter, and he told me that a guy with a cap passed by the entrance and said it was him and handed it over without further ado. I have complained to the transport company, and they tell me that a certain C.C.C. took it and that I should look among the neighbors, when they should be doing that. It is not only the lack of a solution for the literal theft of my package, but also that it contained, in addition to my goods, all my personal data, ID, phone number, address, name, surname, and an invoice of the purchased items with my banking details, data that I have never authorized them to give to a stranger who could use it unlawfully, causing me great harm. Therefore, I request your intervention."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/15

Along with the complaint, a thread of emails exchanged with "Envialia" is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to ENVIALIA WORLD (hereinafter, EW) for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on July 28, 2022, as stated in the certificate in the file.

On August 25 of that same year, this Agency received a written response indicating that "...it had not been aware of the complaint until the notification received from the AEPD, so it could not respond to the claimant, as we did not have either the complaint or their contact details. We proceed to respond to the email listed in Annex 1 (***USER.1@hotmail.com) and attach a copy of the response given.

b) Regarding the decision made concerning this complaint: It is necessary to understand the roles of the different companies involved in the delivery process:

Client: Contracts the services of the cargo agency.

Cargo Agency: Acts as the Data Controller, has a contract with Envialia World that provides it with the Envialia Network formed by other agencies with which it has contracts.

Envialia World: Acts as the Data Processor.

Cargo Agency: Acts as a sub-processor.

Recipient: Is the interested party and, in this case, harmed by the malpractice of the courier of the cargo agency.

From Enviaia World, we consider this fact as theft, and in this situation, we inform the responsible agencies to file the corresponding complaint.

On the other hand, whether it is the Cargo Agency, ENVIALIA WORLD, or the destination agency, they are only responsible for the data that appears on the label accompanying the package to be delivered; in no case can they be responsible for the data that may be inside the package (such as the invoice mentioned by the interested party with their banking details) since none of the companies of ENVIALIA or the involved agencies have access to or should access this data and do not even know what is inside the package.

We understand that if there is any type of violation of the rights of the interested party, it is by the sub-processor, which is the destination agency. For this reason, we proceed to inform you of the complaint received and analyze the reasons that led to the malpractice in the delivery and to demand the application of measures that prevent the problem from recurring...".

THIRD: On August 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/15

issue, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following points:

On April 12, 2023, information was requested from EW to provide:

"1. Description of all parties involved in the commercial relationship and the process of collection/delivery of the shipments.

2. Documentation that certifies the relationships of ENVIALIA WORLD S.L. with the parties described in your response, and in particular the data processing agreement, since point 2.b) of your response defines ENVIALIA WORLD S.L. as the Data Processor."

On April 27, 2023, a response was received in the following terms:

- Responds in point FIRST to point 1 of the request: "Client: CENTROS COMERCIALES CARREFOUR, S.A., with NIF A28425270, and located at P.I. "Las Mercedes", calle Campezo 16, 28022 Madrid. Freight agency; FOURTH PARTY LOGISTICS, S.L., with NIF B86496007 and located at Avenida Suiza 2, 28821, Coslada, Madrid. FOURTH PARTY LOGISTICS S.L. operates under the brand ENVIALIA, within a national transport network. FOURTH PARTY LOGISTICS subcontracts the services of FOURTH PARTY SERVICES, S.L., a company within the same network, which maintains relationships with ENVIALIA WORLD, S.L., established in a transport and messaging contract. ENVIALIA WORLD S.L. makes its transport network available to FOURTH PARTY SERVICES S.L. to carry out the management and provision of services. In this case, the messaging shipment was carried out directly by FOURTH PARTY SERVICES S.L., through the company THE BEE LOGISTICS, SLU, which was responsible for delivering the package to Ms. A.A.A. The courier delivered the package to the neighbor indicated by Ms. A.A.A., a fact not disputed by the complainant, who states that her name is B.B.B. and the package was delivered to C.C.C., who picked it up and provided their ID. On the other hand, the data available only to FOURTH PARTY SERVICES S.L. are those appearing on the package, solely identifying, and in no case are there any bank details, nor national identity document or equivalent. In any case, after the incident, FOURTH PARTY SERVICES S.L. requested THE BEE LOGISTICS, SLU to adopt preventive and reactive measures, and to review with its employees the Enviaia Operations Manual for proper compliance. The collection and delivery process is as follows:

1. The client purchases at Carrefour, through its online platform, and once the purchase process is

completed, it gives the order to its transport and messaging provider, FOURTH PARTY LOGISTICS S.L., to carry out the delivery. The daily communication of the list of shipments that will travel through the Enviaia network is carried out via a SOAP Service, where an XML is extracted, with the necessary data for the correct management and delivery of the same (address, type of...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/15

service, observations, etc.). The label is generated from a ZPL code, with a barcode in CODE 128.

2. FOURTH PARTY LOGISTICS, through FOURTH PARTY SERVICES, carries out the delivery of this package, in collaboration with the transport company THE BEE LOGISTICS, contracted for this service.

3. THE BEE LOGISTICS SLU delivers to the person indicated by the buyer -Ms. A.A.A.-."

-

Responds in the SECOND point to point 2 of the request: "In response to this question, we attach the current contract formalized between CARREFOUR and FOURTH PARTY LOGISTICS SL. The contract between FOURTH PARTY LOGISTICS and THE BEE LOGISTICS SLU is a verbal contract, as until September 2022 the RD-Law 3/2022, which established the obligation for continuous transport contracts to be in writing, did not come into effect, also granting full validity for sporadic transport contracts solely with the corresponding bill of lading."

EW provides a copy of a service provision contract between FOURTH PARTY LOGISTICS S.L. and CENTROS COMERCIALES CARREFOUR S.A. for the distribution, home delivery, and delivery of the sold goods.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Possible administrative infringement.

Article 4 of the GDPR, points 7 and 8, specifies what is to be understood by the data controller and the data processor. Thus we have:

"7) 'data controller' or 'controller' means the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;

8) 'data processor' or 'processor' means a natural or legal person, public authority, service, or other body which processes personal data on behalf of the controller;..."

In short, the data controller is the natural or legal person or public authority that decides on the processing of personal data, determining the purposes and means of such processing.

By virtue of the principle of proactive responsibility, the data controller must implement technical and organizational measures to comply with and be able to demonstrate compliance, taking into account the risk involved in the processing of personal data.

For its part, the data processor is the natural or legal person, public authority, service, or other body

that provides a service to the controller that involves the processing of personal data on behalf of the controller.

In this sense, the controller is the one who decides the “why” and the “how” regarding personal data, and the processor is the one who carries out the processing on behalf of the controller.

The role of the data processor in the GDPR is defined in Article 28, which establishes the requirements that must be met regarding data protection:

1. When processing is to be carried out on behalf of a controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will meet the requirements of this Regulation and ensure the protection of the rights of the data subject.
2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.
3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:
 - a) shall process the personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before the processing, unless that law prohibits such information on important grounds of public interest;
6/15
 - b) will ensure that authorized persons to process personal data have committed to respecting confidentiality or are subject to a statutory obligation of confidentiality;
 - c) will take all necessary measures in accordance with Article 32;
 - d) will respect the conditions set out in paragraphs 2 and 4 for engaging another processor;
 - e) will assist the controller, taking into account the nature of the processing, through appropriate technical and organizational measures, where possible, so that the controller can comply with its obligation to respond to requests concerning the exercise of the rights of data subjects established in Chapter III;
 - f) will help the controller ensure compliance with the obligations established in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;
 - g) at the controller's choice, will delete or return all personal data once the provision of processing services has ended, and will delete existing copies unless the retention of personal data is required by Union or Member State law;
 - h) will make available to the controller all necessary information to demonstrate compliance with the obligations established in this article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor will immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or Member States.

4. When a processor engages another processor to carry out certain processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 will be imposed on this other processor, through a contract or other legal act established in accordance with Union or Member State law, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures so that the processing is compliant with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor will remain fully responsible to the controller for compliance with the obligations of the other processor. (...)

These specific obligations may be supervised by data protection authorities, without prejudice to any oversight that may be carried out in relation to

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/15

with compliance with the GDPR or the LOPDGDD by the data controller or the data processor.

In accordance with the provisions of Article 28 of the GDPR, the data controller and the data processor must regulate the processing of data in a contract or legal act that binds the processor to the controller; that contract or legal act must establish the object, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, the obligations and rights of the controller, etc. The data processor, in turn, may engage another processor ("sub-processor") provided that it has prior written authorization from the data controller, whether it be a specific or general authorization. In these cases, the processor is obliged to inform the controller of changes in the incorporation or replacement of other processors, so that the controller may oppose such changes.

The relationship binding the data controller and the processor, or the latter and another processor, must be formalized in writing, including in electronic format. In both cases, the same obligations referred to in paragraph 3 of Article 28 must be imposed on the processor or "sub-processor."

In this case, EW explains that:

- “- Envialia World has a transport and messaging contract with Fourth Party Logistics.
- Fourth Party Logistics subcontracts the services of Fourth Party Services.
- Envialia World puts its transport network at the service of Fourth Party Services to carry out the provision of the service.
- Fourth Party Logistics has a verbal messaging contract with The Bee Logistics, a company it identifies as a "cargo agency" and which would be responsible for the delivery of the package.”

A copy of a service contract between CENTROS COMERCIALES CARREFOUR SA with NIF A28425270 (as client, although its signature does not appear) and FOURTH PARTY LOGISTICS SL with NIF B86496007 (as transporter), for the delivery of goods to homes, is provided, in which the section on data protection states that the former is the controller, and the latter is the processor of personal data.

This contract expressly establishes that “...In those cases where the subcontracted service involves access to or processing of personal data owned by CARREFOUR by the subcontracted company, the TRANSPORTER must ensure that the subcontracting is carried out in compliance with the provisions of applicable legislation and, in particular, with the provisions of the Personal Data Protection regulations.

In the event that authorized subcontractors have access to personal data under the responsibility of CARREFOUR, they will act as sub-processors of the processing, with the following applying:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/15

- The TRANSPORTER will notify CARREFOUR of the identity of the sub-processor before proceeding with the subcontracting;
- The processing of data by the sub-processor must comply with CARREFOUR's instructions; and
- The TRANSPORTER and the sub-processor will sign a contract/clause that complies with the provisions of the Data Protection regulations.

The TRANSPORTER will notify CARREFOUR of the conclusion of this contract with the sub-processor and will provide a copy if requested...”

EW states that there is a verbal service contract between FOURTH PARTY LOGISTICS SL and THE BEE LOGISTICS SL, but this is not substantiated.

It is evident that there are contractual relationships between ENVIALIA WORLD SL, FOURTH PARTY SERVICES SL, and FOURTH PARTY LOGISTICS SL; however, no documentation of the same has been provided.

Consequently, FOURTH PARTY LOGISTICS SL, ENVIALIA WORLD SL, FOURTH PARTY SERVICES SL, and THE BEE LOGISTICS SL would necessarily also have to process personal data; however, FOURTH PARTY LOGISTICS SL would do so in its capacity as the data processor and ENVIALIA WORLD S.L., FOURTH PARTY SERVICES SL, and THE BEE LOGISTICS SL., as sub-processors thereof.

Analyzing the relationship of the various parties involved, it is evident that the subcontracting does not comply with the provisions of the current data protection regulations, due to the lack of formalization of contracts or legal acts, as well as the lack of prior authorizations for their formalizations.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement, attributable to FOURTH PARTY LOGISTICS SL for violation of Articles 28.2 and 28.3 of the GDPR.

IV

Classification of the infringement of Article 28.2 of the GDPR

If confirmed, the aforementioned infringement of Article 28.2 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/15

(...)"

In this regard, the LOPDGDD, in its article 71 "Infringements" establishes that

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, article 73 "Infringements considered serious" of the LOPDGDD indicates:

"According to what is established in article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and will be subject to a two-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

(...)

l) The hiring by a data processor of other processors without the prior authorization of the controller, or without having informed the controller about the changes made in subcontracting when they were legally required. (...)"

V

Sanction for the infringement of article 28.2 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is appropriate to adjust the sanction to be imposed according to the following criteria established in article 83.2 of the GDPR:

As aggravating factors:

-

b) The link of the infringer's activity with the processing of personal data.

The Judgment of the National Court of 17/10/2007 (rec. 63/2006), regarding entities whose activity involves continuous processing of customer data, indicates that "...the Supreme Court has understood

that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard.”

FOURTH PARTY LOGISTICS SL is a company engaged in the transportation of goods by railway traffic via standard and narrow gauge, road freight transport, other land transport, international maritime transport of goods (except crude oil and gases), cabotage transport, and transport via inland waterways (except crude oil and gases).

Transport companies handle a significant amount of data, both customer data, data related to their shipments, as well as that of employees and suppliers.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/15

FOURTH PARTY LOGISTICS SL is registered in the Madrid Commercial Registry, is a small-sized company whose share capital is in the range of €50,001 - €100,000, with an employee count of between 11 and 50 and a sales amount of between €3,000,001 and €50,000,000.

The balance of the circumstances contemplated in article 83.2 of the GDPR and article 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of article 28.2 of the GDPR, allows for an initial sanction of €60,000 (SIXTY THOUSAND EUROS).

VI

Classification of the infringement of article 28.3 of the GDPR

If confirmed, the aforementioned infringement of article 28.3 of the GDPR could imply the commission of the infringements classified in article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €10,000,000 or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its article 71 “Infringements” establishes that

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, article 73 “Infringements considered serious” of the LOPDGDD indicates:

“According to what is established in article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and will be subject to a two-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following: (...)

k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act with the content required by article 28.3 of Regulation (EU) 2016/679. (...).”

VII

Sanction for the infringement of article 28.3 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is appropriate to adjust the sanction to be imposed according to the following criteria established in article 83.3 of the GDPR:

C/ Jorge Juan, 6

www.aepd.es

As aggravating factors:

-

b) The connection of the infringer's activity with the processing of personal data.

The Judgment of the National Court of 17/10/2007 (rec. 63/2006), regarding entities whose activity involves continuous processing of customer data, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

FOURTH PARTY LOGISTICS SL is a company engaged in the transportation of goods by rail traffic via standard and narrow gauge, road transport, other land transport, international maritime transport of goods (except crude oil and gases), cabotage transport, and transport via inland navigable waterways (except crude oil and gases).

Transport companies handle a significant amount of data, including customer data, data related to their shipments, as well as that of employees and suppliers.

FOURTH PARTY LOGISTICS SL is registered in the Madrid Commercial Registry, is a small-sized company with a share capital in the range of €50,001 - €100,000, with a number of employees between 11 and 50 and a sales amount between €3,000,001 and €50,000,000.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 28.3 of the GDPR, allows for an initial fine of €60,000 (SIXTY THOUSAND EUROS).

VIII

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is noted that failure to comply with a possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against FOURTH PARTY LOGISTICS, S.L., with NIF B86496007, for the alleged infringement of Articles 28.2 and 28.3 of the GDPR, both classified in Article 83.4 a) of the GDPR.

SECOND: TO APPOINT D.D.D. as instructor and E.E.E. as secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the sanction that

may correspond, without prejudice to what results from the instruction, would be:

SIXTY THOUSAND EUROS (€60,000) for the alleged infringement of Article 28.2 classified in Article 83.4 a) GDPR.

SIXTY THOUSAND EUROS (€60,000) for the alleged infringement of Article 28.3 classified in Article 83.4 a) GDPR.

FIFTH: TO NOTIFY this agreement to FOURTH PARTY LOGISTICS, S.L., with NIF B86496007, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

If they do not submit allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as provided in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/15

reduction, the penalty would be set at 96,000.00 euros, concluding the procedure with the imposition of this penalty.

Similarly, at any time prior to the resolution of this procedure, voluntary payment of the proposed penalty may be made, which will entail a reduction of 20% of its amount. With the application of this reduction, the penalty would be set at 96,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the penalty is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the penalty would be set at 72,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the penalty.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (96,000.00 euros or 72,000.00 euros), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

935-290523

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

SECOND: On July 3, 2023, the respondent has proceeded to pay the penalty in the amount of 72,000

euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or administrative appeal against the penalty and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate penalty.

2. When the penalty is solely pecuniary or when a pecuniary penalty and another non-pecuniary penalty can be imposed but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the penalty is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed penalty, which will be cumulative."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/15

of the procedure and its effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction.

The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202208230, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to FOURTH PARTY LOGISTICS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es